IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No4

CP(CAA)/04(AHM)2023
in
CA(CAA)/62(AHM)2023

Proceedings under Section 230-232 of Co.Act,2013

IN THE MATTER OF:

Nakoda Cotton Industries Pvt Ltd **.....Applicant**
MGN Agro Properties Pvt Ltd

.....Respondent

Order delivered on 07/02/2023

Coram:

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Dharmishtha Raval, Adv.
For the Respondent :

ORDER

Learned Counsel Ms. Raval for the Petitioner states that second motion petition is filed for admission. First motion application was allowed vide order dated 22.12.20222 and this petition is filed on 23.01.2023. Learned Counsel for the Petitioner makes an oral prayer that delay, if any, be condoned. Considering the submission, we condone the delay in filing the petition and admit the application.

Second motion petition filed under Section 230-232 of the Companies Act.

The Petitioner has served Notice(s) to Statutory Authorities and also filed affidavit evidencing service to concerned Authorities.

The Petitioner shall advertise Notice of hearing of this petition in "Financial Express" Ahmedabad Edition and Gujarati translation thereof in "Kutch Mitra" Gujarat daily Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.
3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List for hearing on 29.03.2023.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)